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File No.: EXP202202261

RESOLUTION OF FILE OF ACTIONS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On February 1, 2022, a complaint was filed with the Spanish Agency for Data Protection against BIROU GAS, S.L., and FENÍE ENERGÍA, S.A.

The reasons for the complaint are as follows:

On January 10, 2020, he contracted, through a commercial agent referred to as "A.A.A.", the supply of electricity with Fenie.

On January 27, 2022, after noticing that he was not receiving the electricity supply invoices, he contacted Fenie. They informed him that his contract had been canceled.

According to what he has been able to ascertain, after contacting A.A.A. and a third party referred to as "B.B.B.", since October 2021, his electricity supplier is Birou.

He denies having made or consented to the use of his personal data to contract with Birou.

Relevant documentation provided by the complainant:

Electricity invoice dated January 17, 2022, issued by Birou in the name of the complainant in relation to the supply point XXX (Unified Supply Point Code - CUPS).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to BIROU GAS, S.L., and FENÍE ENERGÍA, S.A., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 24, 2022, by Birou Gas and on February 28, 2022, by Fenie Energia, as evidenced by the acknowledgments of receipt in the file.

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On February 25, 2022, a response letter from Birou Gas was received by this Agency indicating that the contract was entered by Multigas asesores S.L. (hereinafter Multigas). They added that they proceeded to carry out the registration since the data entered was correct. They also indicated that they would delete the complainant's data from their systems.

They attached a copy of the electricity supply contract in the name of the complainant, dated September 24, 2021. It includes the following personal data of the complainant: name, surname, tax identification number (NIF), address, phone number, email, electricity CUPS, and bank account number for direct debits. This data matches that recorded in the contract signed with Fenie dated January 11, 2020 (document 1 attached by Fenie).

It contains handwritten signatures in the sections dedicated to the client's signature. The handwriting appears different from that on the contract with Fenie.

Fenie, on March 25, 2022, made the following statements:

"On January 11, 2020, the Complainant signed an electricity supply contract with Fenie Energía that was in force until October 4, 2021, the date on which a change of supplier occurred.

[...] Regarding the change of supplier, Fenie Energía has no scope of action whatsoever.

[...] The CNMC establishes a series of processes and communication steps between suppliers and distributors to carry out various procedures.

[...] In a change of supplier, three actors are involved; the incoming supplier, which is the company requesting the change, the distributor (UFD Distribución Electricidad, S.A.) which operationally carries out the change, and the outgoing supplier being the company at the current moment before the

change.

The outgoing supplier, in this case, Feníe Energía, has a passive position, that is, it only receives two communications from the distributor, one of acceptance and one of activation of the change, which colloquially reduce to "this customer is leaving" and "this customer has left," without knowing with whom. Therefore, there is no action that can be taken to prevent it.

[...] Feníe Energía has no way of knowing how the supplier Logos Energía obtained the complainant's personal data, nor what enabling title [sic] it used to validate the contract.

Furthermore, to inform that the aforementioned "A.A.A.," being this the commercial name and Mr. C.C.C. the real name, was a collaborating agent of Feníe Energía by virtue of a collaboration agreement, but this does not create, imply, or demonstrate any association or joint venture between the Parties, nor any relationship between them as principal and agent.

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[...] That is to say, once again, Feníe Energía does not have any framework of action in the activity of Mr. C.C.C. However, in case it may be of assistance in the matter at hand, we would like to indicate that this party has become aware that Mr. C.C.C. has sold at least part of the portfolio to a third party, although we do not know the terms and conditions."

Attached is the following documentation:

- Document 1: Copy of the electricity supply contract dated January 11, 2020, for the CUPS XXX signed between the claimant and Feníe. It contains a handwritten signature in the section dedicated to the client's signature.

- Document 2: Copy of the message in "XML" format that indicates having been received as part of the claimant's process of changing suppliers for the "acceptance of the change" ("XML" is a format that allows the definition of grammars for the exchange of information between applications). The specific message contains the following data:

Message type: "MensajeAceptacionCambiodeComercializadorSaliente"

Process code: "C1".

Step code: "11"

Request code: "YYY"

CUPS: "XXX"

Request date: "2021-10-04"

- Referred to as Document 3: Copy of the message in XML format that indicates having been received as part of the claimant's process of changing suppliers for the "activation of the change." The specific message contains the following data:

Message type: "MensajeActivacionComercializadorSaliente"

Process code: "C1".

Step code: "06"

Request code: "YYY"

CUPS: "XXX"

Request date: "2021-10-05"

Expected activation date: "2021-10-04"

- Referred to as Document 4: Extract (pages 53 to 64) from document INF/DE/152/15 of the CNMC that contains the heading titled "Format of file C1: Change of supplier without modifications to the access contract." The document does not indicate that there is a verification process of the outgoing supplier that would allow for a rejection of the initiated change request. It includes information about the messages exchanged in the different steps of the process, including a flowchart of the same. The following text is extracted: "The format of the exchange files to execute a change of supplier without modifications to the access contract consists of the following steps:

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[...] Step 06: Communication of the activation of the change of supplier from the distributor to the outgoing supplier.

[...] Step 11: Communication by the distributor to the outgoing supplier of the acceptance of a change of supplier request."

THIRD: On April 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following points:

A request was made to Birou in order to expand the information regarding the facts that occurred in relation to the following points:

"According to what has been stated in previous writings, the contracting was carried out on September 24, 2021, through a third party (MULTIGAS ASESORES S.L.). In relation to these facts, the following is requested:

- Copy of the contract signed between BIROU GAS, S.L. and MULTIGAS ASESORES S.L. under which the claimant's contracting was carried out.
- In case it is not included in the clauses of the contract referred to in the previous paragraph, a copy of the contract or legal act signed between BIROU GAS, S.L. and MULTIGAS ASESORES S.L. in compliance with Article 28 of the GDPR.
- Indicate whether BIROU GAS, S.L. has provided instructions to MULTIGAS ASESORES S.L. to carry out the registration of products or services in relation to the processing of the personal data collected. In such case, provide a copy of the instructions given and evidence of their delivery to MULTIGAS ASESORES S.L.
- Indicate whether BIROU GAS, S.L. has specifically provided instructions to MULTIGAS ASESORES S.L. on what information must be collected to verify the identity of the client before proceeding with the contracting. In such case, provide a copy of the evidence obtained for the claimant's contracting.
- Indicate whether BIROU GAS, S.L. conducts controls over MULTIGAS ASESORES S.L. in order to verify that it complies with the aforementioned instructions. In such case, provide the information and documentation evidencing the execution of such controls."

The previous request was made both electronically and by post. In both cases, there is proof of delivery to the recipient (Birou). There is no record of a response to the request.

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Additionally, an information request has been directed to Multigas in the following terms:

- "Copy of the personal data associated with D.D.D. (NIF ***NIF.1) that you have, indicating the purpose and legal basis for its processing.
- Copy of the contract signed between BIROU GAS, S.L. and MULTIGAS ASESORES S.L. under which the attached contract was executed.
- Indicate whether MULTIGAS ASESORES S.L. collected/verified information/documentation to prove the identity and consent of the client for the contracting. In that case, provide a copy of the evidence you have.
- Indicate whether BIROU GAS, S.L. has provided instructions to MULTIGAS ASESORES S.L. to register products or services in relation to the processing of the personal data collected. In that case, provide a copy of the instructions given and evidence of their delivery to MULTIGAS ASESORES S.L.

- Indicate whether BIROU GAS, S.L. conducts checks on MULTIGAS ASESORES S.L. to verify that it complies with the aforementioned instructions. In that case, provide the information and documentation evidencing the execution of such checks."

The previous request was made both electronically and by post. In both cases, there is proof of delivery to the recipient (Multigas). There is no record of a response to the request.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of processing

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Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

III

Legitimacy of processing

For its part, Article 6.1 of the GDPR establishes the following:

"The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more

specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

IV

Conclusion

The complainant states that, without their participation or consent, a contract was signed with the company BIROU GAS, S.L. (Birou). They indicate that an intermediary, who was aware of their personal data—having mediated in the contract actually made with their supplier, FENÍE ENERGÍA, S.A. (Fenie)—may have made the change on their behalf.

Birou has provided a copy of the contract made in the name of the complainant dated September 24, 2021. It has been verified that this contract includes the same personal data as the contract signed by the complainant with Fenie on January 11, 2020. Birou adds that the contract was made through MULTIGAS ASESORES, S.L. (Multigas), and as evidence of this, refers to additional documents regarding the existence of the contract. In Birou's information systems, September 29, 2021, is recorded as the date of signing the contract, and February 9, 2022, as the date of cancellation of the same. Regarding the latter, Birou indicates that, after receiving the transfer from the AEPD, it proceeded to delete the complainant's data from its systems.

Subsequent actions taken by the AEPD Inspection have not yielded additional evidence.

Therefore, based on the information provided in the previous paragraphs, it can be considered that at the present time there is insufficient evidence to establish the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, since the personal data held by the respondent apparently did so by virtue of a contract signed by the complainant, thus existing legitimacy for its processing.

Consequently, and in application of the principle of presumption of innocence, it is appropriate to agree to the filing of the proceedings, without prejudice to any subsequent procedures that may be initiated in the event of obtaining new evidence.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

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SECOND: TO NOTIFY this resolution to BIROU GAS, S.L., to FENÍE ENERGÍA, S.A., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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